

M/s Hind Agro Industries Ltd. v. Dakshinanchal Vidyut Vitran Nigam Ltd.

Allahabad High Court · Division Bench · 25 November 2020 · Writ-C No. 19073 of 2020 · **Writ disposed; CGRF to decide in four weeks; no merits.**

HEADNOTE

After an earlier writ had been dismissed with liberty to complain to the Consumer Grievance Redressal Forum under the U.P. Electricity Supply Code, 2005 and a four-week disposal direction, a subsequent writ alleging that the Forum had still not decided the complaint was disposed of on the licensee's statement. The Division Bench directed the respondents to file their objection before the Forum within two weeks if not already filed, and directed the Forum to pass an appropriate order in accordance with law preferably within four weeks after hearing the consumer, without expressing any opinion on merits.

FACTUAL SUMMARY

Hind Agro Industries Ltd. had filed Writ-C No. 6486 of 2020, dismissed on 27 February 2020 with liberty to complain to the Consumer Grievance Redressal Forum under the U.P. Electricity Supply Code, 2005, the Forum being told to decide within four weeks. It returned alleging the Forum had still not decided despite that order being filed with the complaint. Counsel for Dakshinanchal Vidyut Vitran Nigam Ltd. offered that the Forum be directed to decide in a fixed time and that the discom would file its objection within two weeks.

HOLDING-UNITS

HOLDING-UNIT · UP-2005::CGRF

cgrf-expeditious-disposal

HOLDING

Where a CGRF complaint under the U.P. Electricity Supply Code, 2005 remained undecided despite an earlier High Court liberty and four-week disposal direction, a subsequent writ was disposed of on the licensee's statement by directing the respondents to file their objection before the Forum within two weeks if not already filed, and directing the Forum to pass an appropriate order in accordance with law expeditiously, preferably within four weeks after hearing the consumer, without any opinion on merits. ¶ 1

FLAG order cites the Supply Code 2005 and the Consumer Grievance Redressal Forum without numbering a clause

PRINCIPLE TAGS

cgrf-expeditious-disposal On the discom's statement, the Court directed CGRF to decide the pending Supply Code complaint in accordance with law within four weeks after hearing, without expressing any opinion on merits. ¶ 1

NOT DECIDED — NEGATIVE AUTHORITY

NOT DECIDED — MERITS OF THE PETITIONER'S COMPLAINT BEFORE THE CONSUMER GRIEVANCE REDRESSAL FORUM

The Court expressly stated that it had not expressed any opinion on the merits of the petitioner's case. ¶ 1